

# Filming a documentary about occupational safety and health conditions in Montenegro

January 18-20, 2022

One of the activities of the project “Enhance labor conditions and occupational safety and health as a support to the Western Balkans toward accessing the European Union“ was filming a documentary about the problems and challenges in the field of occupational safety and health. Due to that, journalist Julija Cvetkovska from Skopje stayed in Montenegro with her team of cameramen and associates, in the period from January 18 to 20, 2022. Interviews, in which representatives of various institutions discussed the topic of occupational safety and health from their point of view, were conducted. It was necessary to include one example from practice – an interview with a person who suffered an injury at work. and the manner in which the person did (not) exercise its legal rights.

The Safety at Work Association of Montenegro (SWAM) hosted Damjan Šišović in its office. Damjan, who did not have a valid employment contract, suffered a serious injury at work in February 2020, where he was employed in the installation of an elevator on the construction site of a building in Nikšić. During his working in the elevator shaft, a 170-kilogram electric engine slipped off the rails and hit him in the back of the head, then crushed him against the scaffolding. That engine was installed the day before, by some other workers who forgot to set the border, and Damjan, hereto, never received safety equipment. He ended up in the Emergency Center in Podgorica with a cracked jaw, broken front teeth, with fractured shoulders and a fractured left arm, as well as damage to two vertebrae.



Šišović's employer had omissions in OSH, which caused the accident and imposed fines of 1,000 euros for his employer's company, TRI Best, and 60 euros for the authorized person at the moment (company director who died in the meantime), as determined by the inspection after the accident. The State Prosecution, however, has not established anyone's guilt.

This is a classic example of how a large number of employers in construction treat their employees.



Đina Janković spoke about the role of SWAM in this field, the impact that this organization has on raising awareness, the role in educating employees and employers in the field of OSH, as well as in the segment of public policy making, but also about the activities and strategic goals, whose realization they have been working on in the recent years, in cooperation with colleagues from the region.





On that occasion, representatives of SWAM, together with the journalist team, visited the Directorate for Inspection Affairs. They had a conversation with OSH inspectors – Zlatko Popović and Radmila Mićović. They discussed the position of inspectors in Montenegro, the number of inspections they carried out last year and the number of penalties imposed for non-compliance with the Law on Occupational Safety and Health at Work, as well as the problems that arise due to the lack of unique statistics on injuries. They also referred to the lack of time and space, which inspectors should have for educational supervision, in order to help and contribute to the improvement of the situation, which is caused by the insufficient number of hired inspectors.



The team also visited the Ministry of Economic Development. Occupational safety and health was discussed with Danijela Šuković. Ms. Šuković spoke about the Law on Occupational Safety and Health (LOSH) in Montenegro, and the responsibility and role of the Ministry of Economic

Development in creating OSH policy for all employees. The control and inspection mechanisms, which are available to the Ministry of Economic Development for control of the implementation of the LOSH, were also mentioned. There was a discussion about the non-existence of unique statistics on the number of accidents at work, but also about procedure in Montenegro in the case of an accident at work and what steps are taken.

The journalist tried to find out how the legislation and the inspectorate communicate with civil society organizations involved in OSH, whether these relations are transparent and reliable in order for both parties to contribute together to the reduction of accidents at workplaces. At the end, there was a discussion about how the application of OSH looked like at the time of the pandemic.



Since occupational medicine is an indispensable part of OSH, the SWAM representatives, together with the journalistic team, organized a meeting with the doctor of occupational medicine, Ljiljana Kezunović. The doctor spoke about the state of occupational medicine in Montenegro, as well as who, according to the law, should participate in the procedure in case of work-related injuries. The conversation was focused on a small number of doctors of occupational medicine, as well as the non-existence of the Institute of Occupational Medicine in Montenegro, which is a big issue, especially in terms of proving occupational diseases and work-related injuries.





The team also talked to Željka Mitrović, a journalist from TV NovaM, who spoke about the role of media in Montenegro in creating public awareness and a culture of prevention in OSH, as well as the need for their greater involvement.

